

TIDY GARDEN'S IMPACT ON CRAIGROTHIE VILLAGE COMMUNITY – JULY 2025

The impact of the business Tidy Gardens (operating from Fairbairn House, Craigrothie) on the community of Craigrothie Village, visitors and commuters travelling through the area is explained as follows.

TIDY GARDENS

Tidy Gardens (Fife) Ltd is a garden maintenance company operating from an office in the rear garden of Fairbairn House, Main St, Craigrothie. It has been incorporated since 2008 and its registered office is unit G6, The Granary Business centre, Coal Road, Cupar, KY15 5YQ.

Stored within the curtilage of the operating premises are plants, compost and all other machinery and articles associated with garden maintenance. On a regular basis there are deliveries of plants, compost etc to Fairbairn house.

Fairbairn house itself only has off road parking for 1 vehicle which is the owner's private vehicle. All other vehicles associated with the business park on-street. The most recent information filing at Company house lists average number of employees as 20. From observations, on average there are upwards of 10 to 16 Tidy Gardens associated vehicles parked on the A916 near to Fairbairn House at any one time. Photo 1 is indicative of this



Photo 1

A916

The road that Fairbairn house sits on is Main St, Craigrothie, designated the A916. It is a main A road that is a direct route from Leven/Kirkcaldy to Cupar/Dundee and is busy with agricultural vehicles due to the Villages rural location, LGVs, Motorhomes and caravans (as it is a holiday route) as well as commuters, work vehicles, and visitors. It is also a bus route and Moffat & Williamson operate the no. 64 bus through Main St, Craigrothie with bus stops both ways close to Fairbairn house.

Of note: Craigrothie Primary School is located almost opposite to Fairbairn House and its associated vehicles. During peak travel times at approx. 0730-0900 hrs and 1630 to 1800 hrs the road is particularly busy with vehicles, there is a school crossing at the raised platform but Tidy Gardens vehicles park immediately at same and block the view of any school children, parents and pedestrians crossing.

In addition, there is a sharp bend at 'Old Mill Road', and due to the number of accidents in the past the kerb at this location required to be built up. Even although the Main St has recently been subject to Traffic calming with speed cushions and a reduced speed limit of 20mph, vehicles still approach Craigrothie from the North, downhill, well in excess of 20mph and their

view is restricted until they actually exit the bend, where they are immediately met by a row of Tidy Garden Vehicles. As well as Old Mill Road that exits onto the A916 at the apex of the bend, there is a domestic garage (used by Kingarroch Cottage), and 2 x driveways (1 x Creag ban) and 1 x serving Kingarroch Cottage and Foiseil Kingarroch, both of which exit onto the A916. Photo 3 shows the bend approaching Main St, Craigrothie.



Photo 2

IMPACT

The daily routine at Tidy gardens and its impact on the community is as follows.

0730 to 0900- Tidy Garden employees arrive and park on-street from (and sometimes blocking) the dropped kerb south of the Old Mill Road entrance, bumper to bumper to beyond Fairbairn house, sometimes up to 16 vehicles. This is primarily in the East carriageway, thus channelling all vehicles into 1 lane for a distance of approx 50 m with no place for vehicles to pull in and let other vehicles pass, causing significant and unnecessary obstruction. This has led to several minor accidents, near misses and vehicles driving on the West pavement. There is no supervision, structure or process to the parking of Tidy Gardens vehicles, and drivers of vans and employee cars park where there is a space. The owner /employees of Tidy Gardens never oversee the parking to mitigate any obstruction/disruption.

As the liveried works vans leave for their jobs in the morning about 0900 hrs, the employees personal vehicles are left parked on street, along with liveried vans if the regular drivers are on holiday. Again, this isn't based on any structure, or supervision by Tidy gardens and they are left where they were parked when they arrived on Main St.

Exponential increase in obstruction/Disruption.

Over recent years (2021 to 2025) there has been an exponential increase in vehicles, Tidy garden vans and employee vehicles operating out of Fairbairn House and the subsequent parking in the immediate and wider vicinity. This has resulted in an increase in anti-social behaviour e.g. slamming doors, loud music from parked employee cars and vans at 0730 hrs onwards, an increase in litter both plant related and other (incl cigarette ends) as well as significant and unnecessary obstruction to driveways, garage entrances and road safety.

In terms of the parking of up to 20 vehicles in the village, these are mostly parked close to the operating premises at Fairbairn Road. In addition, whilst 1 or two of them are parked legally, a lot of the parking contravenes the following legislation:-

1. Transport (Scotland) Act 2019 which prohibits parking at a dropped kerb (Photo 3), and



Photo 3

2. Reg 103 Road Vehicles (Construction & Use) Regulations 1986 which states no person in charge of a motor vehicle may cause or permit the vehicle to stand on a road so as to cause any unnecessary obstruction of the road. The key factor in determining whether the obstruction is deemed 'unnecessary' is as follows
 - a. Short term parking for loading or unloading might be considered necessary, while longer term parking would likely be deemed unnecessary and thus a violation. However, in the case of Tidy gardens vehicles parked bumper to bumper obstructing a carriageway for 50m may be deemed an unnecessary obstruction even for a short period of time for loading. Photo 1 and Photo 4



Photo 4

- b. Parking too close to a junction or driveway blocking visibility for other drivers emerging from the driveway (Photo 5). The white car emerging from the driveway at Creag ban has their line of sight completely obstructed by consistent parking at/near their driveway. This is also relevant when parking opposite the entrance

to the garage of Kingarroch Cottage, making it dangerous entering/emerging from the garage by vehicle.



Photo 5

- c. Parking on or near the bend in the road at 'Old Mill Road' making it difficult for other vehicles to pass, and causing significant disruption at peak travel times
- d. Parking bumper to bumper at/near Craigrothie Primary School causing danger to school children/parents attempting to cross the road whilst all traffic is channelled into the one lane whilst Tidy gardens vehicles are parked. The lack of line of sight whilst crossing the road is significant and a result of the unnecessary obstruction of the road.

Local engagement by neighbours

This issue has existed since Tidy gardens set up business in 2008, and initially residents objected to the business being operated from Fairbairn House. Whilst the impact was unlikely to have been known at that date, the number of Tidy gardens vehicles being parked at Fairbairn House, delivering to and the significant and unnecessary obstruction caused to 50 m of an extremely busy A road has increased exponentially over the past 4 to 5 years.

Within the past 6 months, neighbours have engaged personally with the owner of Tidy gardens and Employees whose cars cause obstruction requesting them not to do so; however the situation has not improved.

Local/Scottish Government Guidance

Mygov.scot website - This Scottish Government website provides the public with guidance on finding and using public services in Scotland. It states that the key test as to whether Planning Permission is required to operate a business from home is the impact on your neighbours and the overall use of surrounding space or environment. It is clear that Tidy gardens impacts hugely on its neighbours and the photographs attached evidence this.

Possible Resolution routes

1. If not currently granted, then due to the exponential impact on the community, threat to road safety, & continual violations of Transport Scotland 2019 and Reg 103 RV (C& U) Regs 1986 then Tidy gardens should be requested to apply for Planning Permission.

2. If planning permission is already granted, then it should be rescinded (or modified) under Section 65 of the Town & Country Planning Act 1997 due to the impact on the community and possible risk to vulnerable people e.g. primary school children, elderly residents, road safety.
3. A combination of the above, but restricting the parking of liveried vehicles to a number, outside the curtilage of Fairbairn House. At the moment vehicles are left where they are parked on a Friday evening and not regrouped & reparked in a considerate/legal manner until collected on a Monday morning by the drivers.
4. The painting of no parking lines, advisory white lines on the roads at and near the location of Fairbairn House, indicating where on-street parking can legally be considered.
5. The business owner secures a suitable business premises with parking for liveried business vehicles and employee vehicles to remain between 0730 to 1800 hours daily.

In Summary, the following is indicative of the significant impact on the community of Tidy Garden's operating from Fairbairn House, Main St, Craigrothie

- Impact to public safety
- Impact to school children and their safety
- Impact to pavement access
- Parking on a bus stop
- Impact – noise, vehicles and general ASB associated with a business of this scale in a domestic setting
- Obstruction and access issues to private space and residential parking
- Tidy Garden's number (10-16) of parked vehicles cause driver behaviours to react and manoeuvre erratically – often HGV, PVG size trying to navigate a chicane of parked vans
- Engagement with the owner has resulted in limited acknowledgement that there is an issue and therefore needs escalated to Community Council, Elected Members.
- Fife Council has legislation which can be considered to support the majority rather than one business having such a massive impact on vehicular traffic on the A916, homes, a school and pedestrians.
- Community feedback and comments, whilst there were road restrictions due to the installation of speed bumps and platform at the school social media quotes indicated the positive impact of a clear Main Street through Craigrothie, instead of having to navigate such a volume of parked vehicles relating to the business.
- The road was calmer, driver behaviour less erratic and noise in general was reduced as vehicles were free flowing on the A916.
- A 20mph speed signage and installations has not changed driver behaviour to any extent and the speed bumps are obstructed by Tidy Garden parked vehicles which park on them.
- A916 through Craigrothie, effectively becomes a one- way street from 0800hrs-1800 hours.

End of Report